53. The second question under the *Shannex* test is whether the challenged pleading requires the determination of a question of law, either pure, or mixed with a question of fact.[33] Whether a limitation period has expired is a question of fact.[34] Therefore, there is no question of law or mixed fact and law to decide in this matter. We submit that the answer to the second question is also no. When the answers to questions #1 and #2 are both no, summary judgment "must" issue.[35]

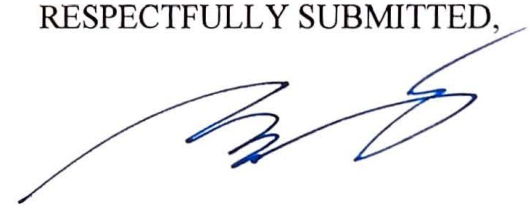
54. Summary judgment should be issued in favour of the AMF Respondents.

CONCLUSION & RELIEF SOUGHT

55. We respectfully request that the court grant an order dismissing this application against the AMF Respondents on the basis that the limitation period was expired at the time of filing the notice of application in court.

56. Pursuant to Justice McDougall's direction in the motion for production and discovery, at paragraph 74 of his written decision,[36] we submit costs of both that motion and this motion should be awarded in favour of the AMF Respondents.

RESPECTFULLY SUBMITTED,



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33 *Shannex*, para 34.
34 *Halef*, para 64.
35 *Shannex*, para 34.
36 *Conrad*, para 74.